

execution" (*b*). [And in a recent case the late M. R. observed "It is called an executory trust, where the testator instead of expressing exactly what he means, that is, filling up the terms of the trust, tells the trustees to do their best to carry out his intention. In that way it is executory, that if he has not put into words the precise nature of the limitations, he has said in effect, 'Now there are my intentions, do your best to carry them out'" (*c*).]

6. **Executory trusts, in marriage articles distinguished from the like trusts in wills.** — We proceed to the inquiry to what extent in executory trusts a latitude of construction is admissible; and to draw the line correctly, we must again distinguish between executory trusts in *marriage articles*, where the Court has a clue to the intention from the very nature of the contract, and executory trusts in *wills*, where the Court knows nothing of the object in view *à priori*, but in collecting the intention must be guided solely by the language of the instrument.

Occasionally confounded. — This distinction was at first but very imperfectly understood. Because executory trusts under wills admitted a degree of latitude, it was held by some, they were to be treated precisely on the same footing as executory trusts in marriage articles; while, because trusts under wills did not admit an equal latitude of construction, it was held by others that they were not to be distinguished from trusts executed (*d*). Even Lord Eldon once observed, "There is no difference in the execution of an executory trust created by will, and of a covenant in marriage articles; such a distinction would shake to their foundation the rules of equity" (*e*). But Lord Mannors said he could not assent to this doctrine (*f*); and Lord Eldon some time after took an opportunity of correcting himself (*g*).

(*b*) *Jervoise v. Duke of Northumberland*, 1 J. & W. 570; and see *Coape v. Arnold*, 4 De G. M. & G. 585.

[(*c*) *Miles v. Harford*, 12 Ch. D. 691, 699.]

(*d*) See *Bale v. Coleman*, 8 Vin. 267.

(*e*) *Countess of Lincoln v. Duke of Newcastle*, 12 Ves. 227, 230; and see *Turner v. Sargent*, 17 Beav. 519.

(*f*) *Stratford v. Powell*, 1 B. & B. 25; *Synge v. Hales*, 2 B. & B. 508.

(*g*) *Jervoise v. Duke of Northumberland*, 1 J. & W. 574.